MATERNITY LEAVE & BENEFITS POLICY

1. Purpose

This policy aims to support women employees during maternity by providing statutory maternity leave, pay, and related benefits, while ensuring business continuity and compliance with Indian labor laws.

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2. Scope & Applicability

This policy applies to:

- All **female employees** (permanent, probationary, or fixed-term) on the company's payroll
- Employees working at company offices or on customer projects
- Employees who have worked **at least 80 days** in the 12 months preceding the expected delivery date

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3. Statutory Framework

This policy is governed by:

- **The Maternity Benefit Act, 1961**
- **Maternity Benefit (Amendment) Act, 2017**
- Applicable Tamil Nadu Shops & Establishments rules (where relevant)

In case of any conflict, **statutory provisions shall prevail**.

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4. Maternity Leave Entitlement

4.1 First Two Children

- Eligible employees are entitled to **26 weeks (182 days)** of paid maternity leave
- Up to **8 weeks** may be availed **before the expected delivery date**
- Remaining leave to be taken **post-delivery**

4.2 Third Child Onwards

- Entitled to **12 weeks (84 days)** of paid maternity leave
- Up to **6 weeks** pre-delivery and remaining post-delivery

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5. Maternity Benefit (Pay)

- Maternity leave shall be **fully paid**
- Pay will be calculated based on **average daily wages** of the last **3 months**
- Includes:
    - Basic salary
    - Dearness Allowance (if applicable)
    - House Rent Allowance
- Excludes:
    - Performance incentives
    - Variable pay / bonuses

Payment will be processed as part of the regular payroll cycle.

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6. Leave for Adoption & Surrogacy

6.1 Adoption

- A woman adopting a child **below 3 months of age** is entitled to **12 weeks of paid maternity leave**
- Leave commences from the date the child is handed over

6.2 Surrogacy

- A commissioning mother is entitled to **12 weeks of paid maternity leave**
- Leave starts from the date the child is handed over

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7. Medical Bonus

- If the company does not provide pre-natal and post-natal medical care, a **medical bonus of ₹3,500** (or as revised by law) will be paid, as per statutory requirement.

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8. Continuity of Service & Benefits

- Maternity leave will be treated as **continuous service**
- No adverse impact on:
    - Appraisals
    - Promotions
    - Salary revisions
    - Seniority

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9. Job Protection

- No employee shall be dismissed, terminated, or discriminated against due to maternity
- Any such action during maternity leave shall be **void and unlawful**

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10. Procedure to Apply

1. Submit written application to HR at least **8 weeks in advance**
2. Provide medical certificate confirming pregnancy
3. Confirm intended leave start date and expected return date
4. HR will issue written approval and handover instructions

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11. Misuse & Compliance

- Any misuse or false claim under this policy may result in disciplinary action
- HR will periodically review compliance with statutory requirements

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12. Policy Review & Amendments

This policy may be reviewed and amended periodically to align with:

- Changes in law
- Organizational needs
- Industry best practices

Maternity Leave Application Form - Personal Details:

First Name: _____ Last Name: _____

Maternity Leave Type	Start Date	Return Date	Remarks (if any)
Leave prior to childbirth (max. 8 weeks)			
Leave post-childbirth (max. 18 weeks)			
Leave for miscarriage (max. 6 weeks)			
Leave without Pay (Max 4 weeks)			

* Medical certificates required for periods of medical leaves

Applicant Signature: _____

Recommending Authority: _____

Approving Authority: _____

HR Use Only: _____